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বাংলাদেশ সুপ্রীমকোর্ট
হাইকোর্ট বিভাগ

আপীল সম্পর্কিত
ফৌজদারী

জেলা - **NARAYANGONJ**

ফৌজদারী কার্যবিধি আইনের ধারার অধীনের রিভিশন
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Md. Manik Miah আবেদনকারী
মাধ্যম Mr. Md. Zakir Hossain, Adv.

বনাম

The State and another

প্রতিপক্ষ

Mr. Mohammad Taifoor Kabir, DAG with Mr. Md. Lokman Hossain and Mr. Md. Hatem Ali, AAG

প্রথম আদালত

ম্যাজিস্ট্রেট,

তারিখ

২০

শাস্তি ও দন্ডদেশ

Present:
Mr. Justice Mamnoon Rahman

আপীল আদালত

তারিখ

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কাগজপত্র বা আদেশের ক্রমিক নং	তারিখ	নোট এবং আদেশ	স্বাক্ষর
01	<u>18.01.2024</u>	In preferring the Criminal Revision under section 439 and read with Section 435 of the Code of Criminal Procedure there had been a delay of 2448 days for which the petitioner filed an application under section 5 of the Limitation Act. Considering the facts and circumstances, the delay of 2448 days in filing the revision is hereby condoned subject to any just objection raised by the opposite-parties at the time of disposal of the rule. Let the records of the case be called for and a rule be issued calling upon the opposite parties to show cause as to why the judgment and order dated 26.02.2017 show cause as to why the Order dated 26.02.2017 passed by learned Additional Sessions Judge, 1st Court, Narayangonj in Criminal Appeal No. 24 of 2014 dismissing the appeal for default which was arising out of Judgment and order dated 05.02.2014 passed by learned Joint	

	Sessions Judge, 3rd Court, Narayangonj in Session Case No. 823 of 2013 arising out of C.R Case No. 443 of 2011 convicting the accused- petitioner under section 138 of the Negotiable Instrument Act and sentencing him to suffer 24. rigorous imprisonment for period of 1 (one) year with a fine of Tk. 75,000/= should not be set aside and after hearing the parties and cause shown, if any make the rule absolute and/or pass such other or further, order or orders as to your Lordships may seem fit and proper, should not be set aside, and/or pass such other or further order or orders as to this Court may seem fit and proper. The Rule is made returnable within 4(four) weeks from date. Pending hearing of the Rule, let the accused petitioner, namely, Md. Manik Miah, son of Akram Hossain be enlarged on ad-interim bail for a period of 1(one) year from date, subject to furnishing bail bond to the satisfaction of the learned Chief Judicial Magistrate, Narayangonj. The office is directed to serve notices upon the opposite parties by usual course as well as by registered post with acknowledgement receipt. Let the realization of fine be stayed. The petitioner is directed to put in the requisites forthwith. (Mamnoon Rahman, J)
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